

RAY v. LOWE'S HOME CENTERS, LLC, et al.
Case No. CU24-05489

Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor

TENTATIVE RULING

The petition is denied without prejudice. Attorney fees are excessive. Should not exceed 25%. Otherwise approved. Resubmit the order with attorney fees adjusted.

DAILEY v. SOLANO COUNTY SHERIFF, ET AL.
Case No. FCS058487

Motion for Leave to File First Amended Complaint

TENTATIVE RULING

Plaintiff's motion for leave to file the proposed amended complaint is granted.

Courts should apply a policy of great liberality in permitting amendment to a pleading at any stage of the proceedings as long as no prejudice has been shown to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.) The party claiming to be prejudiced has the burden of demonstrating that prejudice. (See, *Rickle v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159 [court did not abuse its discretion because the defendants did not make an adequate showing of prejudice].) As long as proposed amendments relate to the same general set of facts, even the introduction of new legal theories should not bar amendment. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Although Plaintiff seeks leave to file a "first" amended complaint, Plaintiff had already filed her first amended complaint as a matter of course on October 17, 2022. Consequently, the court construes the motion as seeking leave to file a second amended complaint.

The proposed second amended complaint attempts to assert two causes of action: one for "*Monell*" liability against Defendant Solano County Sheriff, a public entity, and the second for breach of a duty owed by Defendant Duffield to Plaintiff to ensure her safety. Both claims are based on the same basic set of facts alleged in prior complaints that Plaintiff was injured by Defendant Duffield's negligent driving, failure to check on her condition, and refusal to provide requested emergency medical care. (Proposed "First" Amended Complaint, ¶¶ 15, 16-17; Complaint, § MV-1; FAC, § GN-1.) Defendants have made no showing that they would be substantially prejudiced by the grant of leave to amend.